

M/s Ambika Polytubes And 5 Others v. State of U.P. And 2 Others

Allahabad High Court · Division Bench · 21 March 2017 · Writ - C No. 34862 of 2013 · **Writ dismissed following batch order in Writ-C 30898/2016.**

HEADNOTE

A writ challenging additional security under para 4.20 of the U.P. Electricity Supply Code, 2005 was connected with similar petitions, an interim restraint on that demand was granted, and the petition was later dismissed by reference to the batch order of the same date in Writ-C No. 30898 of 2016.

FACTUAL SUMMARY

M/s Ambika Poly tubes and five others challenged the licensee's demand of additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. On 2 July 2013 the Court connected the writ with WP No. 30582 of 2009 and similar 4.20 matters, allowed time for a counter, and, following the connected interim, restrained the respondents from demanding additional security until further orders. On 21 March 2017 the Chief Justice's Bench dismissed the petition, referring to the order of that date in Writ-C No. 30898 of 2016.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

A writ challenging the demand of additional security under para 4.20 of the U.P. Electricity Supply Code, 2005 was connected with similar petitions, an interim restraint on that demand was granted following the connected order in WP No. 30582 of 2009, and the petition was later dismissed following the order of the same date in Writ-C No. 30898 of 2016. ¶ 1-2

PRINCIPLE TAGS

additional-security A writ challenging additional security under para 4.20 of the U.P. Electricity Supply Code, 2005 was connected with similar petitions, an interim restraint on that demand was granted, and the petition was later dismissed by reference to the batch order of the same date in Writ-C No. 30898 of 2016. ¶ 1-2